

The Indian Institute of Legal Metrology Rules, 1980

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Union of India - Act

The Indian Institute of Legal Metrology Rules, 1980

UNION OF INDIA

India

The Indian Institute of Legal Metrology Rules, 1980

Rule THE-INDIAN-INSTITUTE-OF-LEGAL-METROLOGY-RULES-1980 of 1980

Published on 1 April 1980

Commenced on 1 April 1980

[This is the version of this document from 1 April 1980.]

[Note: The original publication document is not available and this content could not be verified.]

The Indian Institute of Legal Metrology Rules, 1980

Published Vide Notification G.S.R. 194(E), dated 1-4-1980, published in the Gazette of India, Extra, Part 2, Section 3(i), dated 1-4-1980

1011.

G.S.R. 194(E) dated 1st dated 1.4.1980 - In exercise of the powers conferred by section 83 of the Standards of Weights and Measures Act, 1976 (60 of 1976), the Central Government hereby makes the following rules, namely:-

Vide G.S.R. 194(E), dated 1-4-1980, published in the Gazette of India, Ext., Pt. II, section 3(i), dated 1-4-1980.

1.

Short title and commencement.-(1) These rules may be called The Indian Institute of Legal Metrology Rules, 1980.

(2)

They shall come into force on the 1st day of April, 1980.

2.

Definitions.-In these rules, unless the context otherwise required,-

(a)

"Act" means the Standards of Weights and Measures Act, 1976 (60 of 1976).

(b)

"Committee" means the Advisory Committee constituted under rule 8;

(c)

"course" means a course of study in relation to such subjects as may be specified in the regulations;

(d)

"Institute" means the Indian Institute of Legal Metrology;

(e)

"legal metrology" means that part of metrology which-

(i)

relates to units of weights and measures, methods of measurement, and weighing and measuring instruments, and

(ii)

is concerned with the technical requirements and statutory provisions to safeguard the public from the point of view of security and accuracy of measurements;

(f)

["Director (IILM)" means the Head of the Institute;]

(g)

"regulations" means the regulations made by the Central Government under the Act.

3.

Courses to be imparted at the Institute.-[(1) There shall be imparted at the Institute long-term and short-term training courses in legal metrology and other allied subjects including consumer protection activities].

[* * *]

[Sub-Rule (2) omitted by G.S.R. 644(E), dated 17-4-1986).]

[* * *]

[Sub-Rule (3) to (5) omitted by G.S.R. 30(E), dated 13-1-2000 (w.e.f. 13-1-2000).]

(6)

There shall be such refresher course for specific purposes and for such duration as the Committee may recommend.

4.

Functions of the Institute.-With a view to facilitation training, the Institute shall-

(a)

prepare, print or publish such books, manuals, handbooks, periodicals, instruction sheets, notes, papers or other documents on legal metrology and other branches of knowledge as may be recommended by the Committee;

(b)

instal in its premises such equipment and maintain such laboratories as may, in the opinion of the Director (IILM), be necessary for the proper discharge of its functions;

(c)

prepare and implement schemes to stimulate universities, engineering and technical colleges to impart basic education in legal metrology and allied branches of knowledge to under-graduate or post graduate, students, or both;

(d)

prepare schemes for studies with regard to the institutional legal and administrative framework most conducive to the proper implementation of the law relating to legal metrology;

(e)

establish relations and co-operation with any other agency or organisation, whether in India or outside, which may have a useful function in relation to training in legal metrology;

(f)

establish and maintain a library to encourage study of, and research in, legal metrology and allied branches of knowledge.

5.

[* * *]

6.

Qualification of persons to be eligible for admission in the Institute.-No person shall be admitted to the Institute unless he satisfies the requirements of any one of the following clauses, namely:-

(a)

that he is employed by the Central or any State Government in any Department dealing with legal metrology and either holds-

(i)

a degree in Science (with Physics as one of the subjects), technology or engineering , or

(ii)

a diploma in engineering, and has been sponsored for training at the Institute by the Government by which he is so employed;

Provided that a person so employed holding [a degree of a recognised University or equivalent] may also be sponsored by the Government by which he is so employed, if such person having been employed by that Government before the commencement of these rules, has acquired experience in legal metrology for a period of not less than two years:

[Provided further that where any other person employed by the State Government is sponsored by that Government, the Central Government may relax the educational qualifications if the person so sponsored has field experience in legal metrology for a period of not less than two years and he is considered by the Central Government to be otherwise suitable for undergoing the course of training;]

[Substituted by G.S.R. 644, dated 17-4-1986 (w.e.f. 17-4-1986).]

(b)

that he is employed in a country outside India in any department dealing with legal metrology and holds a degree or diploma which is equivalent to a degree or diploma specified in clause (a), and has been sponsored by the Government of the country in which he is so employed:

Provided that in the case of a person employed in a country outside India, who is sponsored by the Government of that country, the Central Government may relax the educational qualifications if the person so sponsored is considered by the Central Government to be otherwise suitable for undergoing the course of training;

(c)

that he is employed in an industrial unit and has passed the examination conducted by an Industrial Training Institute or an equivalent examination, or holds a degree or diploma specified in clause (a) and has been sponsored by the industrial unit in which he is so employed;

(d)

[that he is connected with the consumer protection activities.]

[Inserted by G.S.R. 30(E), dated 13-1-2000 (w.e.f. 13-1-2000).]

7.

Regulation of admission to the Institute.-The admission to the various courses, run by the Institute shall be made by the Director, (IILM) from amongst the eligible candidates, on the basis of the length of experience in the field of legal metrology.

8.

Advisory Committee.-(1) The Central Government [shall constitute] an advisory Committee for advising it in relation to the functions and development of the Institute or in relation to such other matters concerning the Institute as that Government may consider necessary to refer to the Committee.

(2)

[The Central Government may constitute an advisory committee which shall consist of not less than 13 and not more than 15 members having experience in metrology, law or public administration.]

[Substituted by G.S.R. 207(E), dated 14-3-2002 (w.e.f 14-3-2002).]

[***]

[Sub-Rule (2) omitted by G.S.R. 207(E), dated 14-3-2002 (w.e.f. 14-3-2002).]

[* * *]

[Sub-Rule (3) omitted by G.S.R. 30(E), dated 13-1-2000.]

(5)

The travelling and other expenses of the members of the committee for attending any meeting thereof shall be regulated in accordance with such rules, made by the Central Government or, as the case may be, the State Government which are in force for the time being, in relation to such matters and shall be borne by the authority on whose behalf or at whose instance, the member concerned is attending the meeting

(6)

Save as otherwise provided in sub-rule (2), the term of the office of the members of the Committee shall be three years: Provided that a member may be re-nominated for a like period by the authority competent to nominate him under this rule;

[Provided further that if the Committee is not reconstituted after the expiry of the term of office, the term of office of its members shall stand extended for one year or until the Committee is duly reconstituted under this rule, whichever is earlier.]

[Substituted by G.S.R. 644(E), dated 17-4-1986 (w.e.f. 17-4-1986).]

(7)

The Committee may constitute such working groups, as it may think fit to consider such matters as may be entrusted to such working groups.

(8)

The Director, IILM shall be the convener of each working group and shall be an ex officio member of each such working group.

(9)

The Director, IILM shall provide secretarial assistance to the Committee and also to any working group constituted by the Committee.

[* * *]

[Sub-Rules (10), (11) and (12) omitted by G.S.R. 30(E), dated 13-1-2000 (w.e.f. 13-1-2000).]

9.

Power of Institute to grant certificate, diploma.-(1) The Institute may award such certificate of proficiency or diploma [* * *] to the person who has successfully completed the training at the Institute, as the Committee may recommend.

[* * *]

[Sub-Rule (2) omitted by G.S.R. 644(E), dated 17-4-1986 (w.e.f. 17-4-1986).]

10.

Fees

[Substituted by G.S.R. 30(E), dated 13-1-2000 (w.e.f. 13-1-2000).]

.-The Institute may charge such fees, as may be approved, by an order by the Central Government in this regard, for the services rendered by it in imparting various courses.]

omitted

[***]

[The Schedule omitted by G.S.R. 30(E), dated 13-1-2000 (w.e.f. 13-1-2000).]

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